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TAB 2



Board of Education Report

File #: Rep-156-23/24, **Version:** 1

Approval of Facilities Contracts Actions

February 13, 2024

Procurement Services Division - Facilities Contracts

Action Proposed:

Ratify the Procurement Services Division (PSD) contract actions taken by Facilities Contracts under delegated authority as listed in Attachment “A” including: award of advertised construction contracts; award of job order contract amendments; approval of change orders; completion of contracts; award of informal contracts; award of architectural and engineering contract; extra services/amendments for architectural and engineering contracts and approve the proposed contracts listed in Attachment B including coiling doors and motorized gates repair services task order contracts, landscape irrigation repair services task order contracts and elevator maintenance and repair services task order contracts.

Background:

Facilities Contracts staff prepares monthly reports for contract actions necessary for the execution of projects approved by the Board and contained in the FSD Strategic Execution Plan (SEP), and for the maintenance and operation of District facilities in accordance with District policies and Board-delegated authority. As described in the November 12, 2013, Board Report #048-13/14 Informative, detailed information is provided on the Facilities Services website.

Expected Outcomes:

Approval of these items will allow services provided by these contracts to proceed in support of FSD projects, District policies and goals, and the Board-approved FSD-SEP.

Board Options and Consequences:

The Board can approve all actions presented or postpone selected actions pending receipt of additional information. Non-ratification of actions awarded under delegated authority in Attachment “A” will result in the immediate discontinuance of services. While non-ratification may be legally defensible, it will likely result in costly litigation over discontinued payments or if the District attempts to reclaim payments made to a vendor. District costs will likely increase as fewer contractors compete for future procurements.

Policy Implications:

This action does not change District policy and conforms to California Education Code section 17604 that permits the Board of Education to delegate authority for Facilities Contracts (Board Report #444-17/18), which the Board exercised on May 08, 2018.

Budget Impact:

The contract actions presented are within the budget authority previously approved by the Board. Unless indicated otherwise, all contract actions are Bond funded.

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Student Impact:

The contract actions will help ensure that the students are provided with safe and healthy environments, and up to-date facilities that promote learning.

Equity Impact:

Not Applicable.

Issues and Analysis:

There are no policy implications on these agreements.

Attachments:

Attachment “A” - Ratification of Facilities Contracts Actions Awarded Under Delegated Authority

Attachment “B” - Approval of Facilities Contracts Actions Not Under Delegated Authority

Linked Materials

Previously adopted Board report(s) referenced:

- In the background [Board Report No. 048-13/14](#) <<https://drive.google.com/file/d/1Wflyn9Un6v4zJ3Bvz6fHbEj9OQmOM3vy/view?usp=sharing>>, dated November 12, 2013, Informative
- In the policy implications [Board Report No. 444-17/18](#) <<https://drive.google.com/file/d/1vVz3n-jn2POh4M1nEY87pgFmeSALW-nP/view?usp=sharing>>, dated May 8, 2018.

Informatives:

Not Applicable.

Submitted:

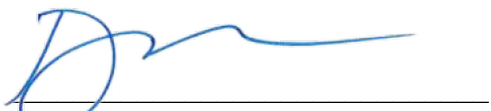
1/16/24

RESPECTFULLY SUBMITTED,

ALBERTO M. CARVALHO
Superintendent

APPROVED BY:

PEDRO SALCIDO
Deputy Superintendent,
Business Services & Operations

REVIEWED BY:

DEVORA NAVERA REED
General Counsel

✓
Approved as to form.

APPROVED:

SUNG YON LEE
Deputy Chief Business Officer
Business Services and Operations

REVIEWED BY:

NOZBERTO DELGADILLO
Deputy Chief Business Officer, Finance

✓
Approved as to budget impact statement

APPROVED & PRESENTED BY:

CHRISTOPHER MOUNT-BENITES
Chief Procurement Officer
Procurement Services Division

REVIEWED BY:

KRISZTINA TOKES
Chief Facilities Executive

✓
Approved as to facilities impact

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Icon West, Inc.	2310005 / 4400012439	<u>Canyon Charter ES</u> New Classroom Building & DOH Portable Replacement Project Board Member: <u>Nick Melvoin</u>	<i>Bond Funds</i> (100%)	\$37,563,300

Ratification of formally competed best value contract selected from three (3) bids received to construct and deliver a classroom replacement project, as authorized on November 14, 2017 ([Board Report No. 189-17/18](#)) and November 16, 2021 ([Board Report No. 029-21/22](#)).

The project will provide construction of a new two-story classroom building to replace seven classrooms in portable buildings and two classrooms in the existing kindergarten building. Included in the project design are approximately nine classrooms (three kindergarten and six general classrooms) and support spaces; infrastructure to support the new facilities including an enhanced information technology network convergence system; upgrades to landscape, hardscape, parking, and playground areas where portables are removed or in other project-related areas; and site work, path of travel, and other required Americans with Disabilities Act (ADA) improvements. Pillar 4 is supported by this action.

The contractor has worked with the District since 2004.

Contract Term: 01/02/24 through completion

Contract Value: \$37,563,300

Requester:

Greg Garcia, Director

Project Execution-Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ADVERTISED CONSTRUCTION CONTRACTS

Item B

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
NSA Construction Group, Inc. (SBE)	2410008 / 4400012404	<u>Fairfax HS</u> ADA Barrier Removal Board Member: <u>Nick Melvoin</u>	<i>Bond Funds (100%)</i>	\$4,954,000

Ratification of formally competed best value contract selected from five (5) bids received to provide Americans with Disability Act (ADA) improvements as authorized on March 13, 2018 ([Board Report No. 340-17/18](#)).

The project will make upgrades to the following facilities to comply with the Americans with Disabilities Act (ADA) and improve program accessibility: doors, door hardware, thresholds, accessible paths of travel, signs, restrooms, drinking fountains/sinks, assistive listening devices, intercoms/phones, concrete ramps, a metal ramp, pieces of accessible furniture, assembly seats, railings, locker room modifications/lockers, a parking area, casework/counters, door modifications/auto openers, changing rooms, a new stage lift and associated upgrades to stages. Pillar 4 is supported by this action.

The contractor has worked with the District since 1998.

Contract Term: 01/15/24 through completion

Contract Value: \$4,954,000

Requester:

Greg Garcia, Director

Project Execution-Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item C

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Alternate Power & Construction, Inc. dba Danial's Electric Co. (SBE)	2330002 / 4400011608 (2330002.01)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$500,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2019. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/01/23 through 05/30/24.

Initial Contract Value:	\$ 350,000
*Amendment No. 1	\$ 500,000
<i>(Executed Date: 11/30/23)</i>	

Aggregate Contract Value: \$850,000

Requester:

Greg Garcia, Director
Project Execution-Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item D

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Geronimo Concrete, Inc. (SBE)	2330006 / 4400011622 (2330006.02)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$1,800,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2005. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/09/23 through 06/07/24.

Initial Contract Value:	\$ 350,000
Amendment No. 1	\$ 650,000
*Amendment No. 2	\$1,800,000
<i>(Executed Date: 12/08/23)</i>	

Aggregate Contract Value: \$2,800,000

Requester:

Greg Garcia, Director
Project Execution-Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item E

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
R Brothers, Inc. (SBE)	2330007 / 4400011623 (2330007.01)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$350,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 2012. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 05/25/23 through 05/23/24.

Initial Contract Value:	\$ 350,000
*Amendment No. 1	\$ 350,000
<i>(Executed Date: 11/28/23)</i>	

Aggregate Contract Value: \$700,000

Requester:

Greg Garcia, Director
Project Execution-Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

JOB ORDER CONTRACT AMENDMENTS

Item F

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
Fredrick Towers, Inc. (SBE)	2330010 / 4400011626 (2330010.02)	Districtwide Job Order Contract Amendment	<i>Bond Funds (100%)</i>	\$1,000,000*

Ratification of Job Order Contract Amendment to increase contract capacity of a formally competed contract to provide general contracting services Districtwide.

The contractor has worked with the District since 1999. These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract term including this amendment: 06/09/23 through 06/07/24.

Initial Contract Value:	\$ 350,000
Amendment No. 1	\$1,000,000
*Amendment No. 2	\$1,000,000
<i>(Executed Date: 12/08/23)</i>	

Aggregate Contract Value: \$2,350,000

Requester:

Greg Garcia, Director
Project Execution-Facilities Services Division

* *Current Ratification*

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

Item G

B. APPROVAL OF CHANGE ORDERS

December 2023 = \$4,999,654

		<u>QUANTITY</u>	<u>AMOUNT</u>
	i. New Construction contract change orders that do not individually exceed 10 percent for December 2023 (Average Transaction: \$39,301; Median Transaction: \$6,033)	26	\$1,021,830
	ii. New Construction contract credit change orders for December 2023:	2	<\$32,764>
	iii. Existing Facilities contract change orders that do not individually exceed 15 percent for December 2023 (Average Transaction: \$13,207; Median Transaction: \$6,394):	262	\$3,460,363
	iv. Existing Facilities contract credit change orders for December 2023:	13	<\$111,616>
	v. Existing Facilities contract change orders that individually exceed 15 percent (but do not exceed 25 percent) for December 2023, requiring 75 percent approval by the Board:	1	\$661,841

C.	COMPLETION OF CONTRACTS – December 2023	18	\$25,616,542
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D.	AWARD OF INFORMAL CONTRACTS (Not Exceeding \$109,300)		
	A & B Letters for December 2023 (Average Transaction: \$37,216; Median Transaction: \$24,444)	19	\$707,098

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

AWARD OF ARCHITECTURAL AND ENGINEERING CONTRACTS

Item H

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>DESCRIPTION</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
The Hill Partnership Inc., dba HPI Architecture	2420015/ 4400012104	<u>McBride Special Education Center - Career and Transition Center West / Grandview Boulevard ES</u> Campus Improvement Project Board Member: <u>Nick Melvoin</u>	<i>Bond Funds (100%)</i>	\$998,042

Ratification of design contract to provide architectural and engineering services procured via RFQ R-13019.

Architectural and engineering services for the Campus Improvement Project that supports the unification of Career and Transition Center West (CTC West) with the James J. McBride Special Education Center. The facilities improvements provided by the Campus Improvement Project are necessary to relocate CTC West from the Fairfax High School campus to McBride. The Campus Improvement Project includes consolidating the adjacent Grand View Boulevard Elementary School Extended Transitional Kindergarten/Transitional Kindergarten through 5th grade programs on the Grand View west site and creates a boundary between McBride/CTC West and Grand View.

The Campus Improvement Project is being designed to include: Construction of a lunch shelter, renovation of classrooms and restrooms, and site fencing/gates and storm/sewer infrastructure upgrades to accommodate the relocated CTC West programs. Additionally, existing classrooms will be upgraded to support relocated elementary grade classes, uncertified/deteriorated relocatable buildings will be addressed; two classrooms in relocatable buildings will be removed; one new modular building with two classrooms, restrooms, and storage space to support the students with extensive needs will be installed; and outdoor areas will be upgraded with green landscaping to accommodate the consolidation of Grand View ES. Portions of the Grand View north parking lot will be upgraded to replace parking in the Grand view south parking lot. Chain link fencing and gates between McBride/CTC West and Grand View will be provided. Also, any other required improvements or mitigations to ensure compliance with local, state and/or federal facilities requirements. ([Board Report No. 281-22/23](#))

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

Contract Term: 11/15/23 through closeout

Contract Value: \$998,042

Requester:

Aaron Bridgewater, Director
Asset Management-Facilities Services Division

ATTACHMENT A

RATIFICATION OF CONTRACTS AWARDED UNDER DELEGATED AUTHORITY

**EXTRA SERVICES / AMENDMENTS FOR ARCHITECTURAL AND
ENGINEERING CONTRACTS****\$690,777****Item I**

CONTRACT NOS.	1620142/ 4400004780; 1620142/ 4400004780; 1620147/ 4400004891; 1720042/ 4400005892; 1820027/ 4400006246; 1920012/ 4400007431; 1920012/ 4400007431; 1920019/ 4400007462; 2020001/ 4400007802; 2220020/ 4400009934
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Extra services are for design work that is not covered under the original Agreement. November Extra Services are listed at the link provided.

These services provide operational effectiveness and modernize infrastructure. Pillar 4 is supported by this action.

[BOE 156 Extra Services](#)

**ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY**

49

**A. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS \$9,000,000
(PCC 20118.5-.9)**

Item J

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
McKendry Door Sales, Inc.	2480030/4400012395
R&S Overhead Door of South Bay, Inc.	2480031/4400012396
South Coast Industrial Door, Inc.	2480032/4400012397

Authorization to award three (3) formally competed task order contracts to provide coiling doors and motorized gates repair services Districtwide procured via IFB R-24007. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each. Pillar 4 is supported by this action.

Contract Term: 03/01/24 through 02/28/27 plus two (2) one-year renewal options

NOT-TO-EXCEED AGGREGATE AMOUNT
\$9,000,000* (100% Restricted Maintenance Funds)

Requester:
India Griffin, Director
Maintenance & Operations-Facilities Services Division

B. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS **\$18,000,000**
(PCC 20118.5-.9)

Item K

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
EcoTech Services, Inc.	2480038/4400012471
Far East Landscape & Maintenance, Inc.	2480039/4400012472
International Environmental Corporation	2480040/4400012473
Mariposa Landscapes, Inc.	2480041/4400012474
Martinez Landscapes Co, Inc.	2480042/4400012475
R Brothers, Inc.	2480043/4400012476

Authorization to award six (6) formally competed task order contracts to provide landscape irrigation repair services Districtwide procured via IFB R-24016. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each. Pillar 4 is supported by this action.

Contract Term: 03/01/24 through 02/28/27, plus two (2) one-year renewal options

NOT-TO-EXCEED AGGREGATE AMOUNT
\$18,000,000* (100% Restricted Maintenance Funds)

Requester:
India Griffin, Director
Maintenance & Operations-Facilities Services Division

ATTACHMENT B
APPROVAL OF CONTRACTS NOT UNDER DELEGATED AUTHORITY

C. APPROVAL OF TECHNICAL SERVICES TASK ORDER CONTRACTS **\$9,000,000**
(PCC 20118.5-.9)

Item L

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>
Elite Elevator Service (SBE)	2480044/4400012469
Fujitec America, Inc.	2480045/4400012480
Total Access Elevator Corporation	2480046/4400012481

Authorization to award three (3) formally competed task order contracts to provide vertical transportation (elevator) maintenance and repair services Districtwide procured via IFB R-24010. The authority to increase or decrease individual amounts for these contracts will be limited to \$3,000,000 each. Pillar 4 is supported by this action.

Contract Term: 03/01/24 through 02/28/27, plus two (2) one-year renewal options

NOT-TO-EXCEED AGGREGATE AMOUNT
 \$9,000,000* (100% Restricted Maintenance Funds)

Requester:

India Griffin, Director
 Maintenance & Operations-Facilities Services Division